

e-MOA (e-Memorandum of Association)



☒ English ☐ Hindi

*All fields marked in * are mandatory*

A - MEMORANDUM OF ASSOCIATION OF A
COMPANY LIMITED BY SHARES

E - MEMORANDUM OF ASSOCIATION OF AN UNLIMITED COMPANY AND HAVING SHARE CAPITAL)

West Bengal

To carry on the business of adopting advance technological tools as well as modern enterprise management mechanism, and to establish and help organizations, banks and financial institutions and their customers alike to conduct transactions electronically through secure electronic channels including cards and other devices, so as to realize the full potential of technology and services and further the development of India Payments system industry. It would include; To provide payment technology solution and services for retail /wholesale banking needs for banking institutions. To carry out the business of banking and retail terminals (Automatic Teller Machines or ATM/ Point of Sale or PoS) that includes owning and operating and/or maintenance of ATMs/PoS. To provide payment services for new generation To establish and carry on in India/abroad the business of providing software application, data management, payment and/or transaction related services to any person, entity, firm, company, bank or body corporate including developing, improving, designing, marketing, distributing or licensing software and programmed products and hardware and other infrastructure and facilities / services that aid the process of (without limitation) electronic data interchange, transaction initiation, processing, clearing or settlement services by physical or

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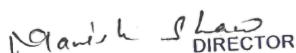
DIRECTOR

electronic means, whether by using computers, automated machines network, mobile devices or by any other modes of communication in financial and other products or services. To carry on business of internet payment gateway of all kinds as an application service provider/third party processors including bill payment and operating as Bharat Bill Payment System Operating Units (BBPOUs) under the Bharat Bill Payment System (BBPS), Immediate Payment Service (IMPS) which is an electronic funds transfer systems of India to transfer money instantly within banks across India through mobile, internet and ATM, Unified Payment Gateway License to send and receive money from smartphones without entering bank account details to various banks, financial institutions and other vertical Industries. To carry on business of Payment gateway All types Bill pay like: electric, postpaid, net, water, hospital, credit card, loan, etc Mobile/ DTH Recharge Book tickets - bus , movie, flight, train, IT services. To establish, operate, and manage an e-commerce platform or marketplace that facilitates online transactions between buyers and sellers. The company shall earn revenue by charging commission on each transaction conducted through its platform, including sales of goods, services, or other products. It will provide a platform for vendors and businesses to list, promote, and sell their products or services, and in return, the company will collect commission, fees, or other forms of remuneration for facilitating these transactions. The company may also provide value-added services related to the e-commerce platform, such as payment processing, logistics support, marketing, and advertising on a commission basis. To carry on the business of consultants, advisors, facilitators and service providers in the field of management, finance, taxation, Accounting, business strategy, legal compliance, information technology, startup advisory and other allied consultancy services to individuals, firms, companies and government bodies and other entities in India.

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1.To purchase, exchange or otherwise, any movable or immovable property and any rights or privileges which the Company may deem necessary for furtherance of the objects specified or convenient for the purpose of its main business. 2.To enter into partnership or into any arrangement for sharing profits, union of interest, joint venture, reciprocal concession or co-operation with persons or companies carrying on or engaged in the main business 3.To import, buy, exchange, alter, improve and manipulate in all kinds of plants, machinery, apparatus, tools and things necessary or convenient for carrying on the main business of the Company. 4.To vest any movable or immovable property, rights or interests required by or received or belonging to the Company in any person or company on behalf of or for the benefit of the Company and with or without any declared trust in

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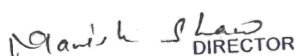
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favor of the Company.5.Subject to the law in force, to hold in the names of others any property which the Company is authorized to acquire. 6.To purchase, build, carry out, equip, maintain, alter, improve, develop, manage, work, control and superintend any plants, warehouse, sheds, offices, shops, stores, buildings, machinery, apparatus, labor lines, and houses, warehouses, and such other works and conveniences necessary for carrying on the main business of the Company. 7.To undertake or promote scientific research relating to the main business or class of business of the Company. 8.To take over the whole or any part of the business, goodwill, trade-marks properties and liabilities of any person or persons, firm, companies or undertakings either existing or new, engaged in or carrying on or proposing to carry on business this Company is authorized to carry on, possession of any property or rights suitable for the purpose of the Company and to pay for the same either in cash or in shares or partly in cash and partly in shares or otherwise.9. To negotiate and enter into agreements and contracts with Indian and foreign individuals, companies, corporations and such other organizations for technical, or any other such assistance Company or for the purpose of activity research and development of manufacturing projects on the basis of knowhow, or technical collaboration and necessary formulas and patent rights for furthering the main objects of the Company.10.To amalgamate with any other company of which all or any of their objects companies having similar to the objects of the Company in any manner whether with or without the liquidation.11.Subject to any law for the time being in force, to undertake or take part in the formation, supervision or control of the business or operations of any person, firm, body corporate, association or undertaking carrying on the main business of the Company.12.To apply for, obtain, purchase or otherwise and prolong and renew any patents, patent rights, brevets, inventions, processes, scientific technical or other assistance, manufacturing processes know-how and other information, patterns, copyrights, trade-marks, licenses concessions and the like rights or benefits, conferring an exclusive or non-exclusive or limited or unlimited right of use thereof, which may seem capable of being used for or in connection with the main objects of the Company or the acquisition or use of which may seem calculated directly or indirectly to benefit the Company on payment of any fee royalty or other consideration and to use, exercise or develop the same under or grant licenses in respect thereof or otherwise deal with same and to spend money in experimenting upon testing or improving any such patents, inventions, right or concessions. 13. To apply for and obtain any order under any Act or Legislature, charter, privilege concession, license or authorization of any Government, State or other Authority for enabling

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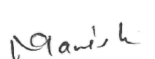
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the Company to carry on any of its main objects into effect or for extending any of the powers of the Company or for effecting and modification of the constitution of the Company or for any other such purpose which may seem expedient and to oppose any proceedings or applications which may seem expedient or calculated directly or indirectly to prejudice the interest of the Company.14. To enter into any arrangements with any Government or Authorities or any persons or companies that may seem conducive to the main objects of the Company or any of them and to obtain from any such Government, authority, person or company any rights, charters, contracts, licenses and concessions which the Company may think desirable to obtain and to carry out, exercise and comply therewith.15. To procure the Company to be registered or recognized in or under the laws of any place outside India and to do all act necessary for carrying on in any foreign country for the business or profession of the Company16. To draw, make, accept, discount, execute and issue bills of exchange, promissory notes bills of lading, warrants, debentures and such other negotiable or transferable instruments, of securities and to open Bank Accounts of any type and to operate the same in the ordinary course of the Company.17. To advance money either with or without security, and to such persons and upon such terms and conditions as the Company may deem fit and also to deal with the money of the Company not immediately required.18. To undertake and execute any trusts, the undertaking of which may seem to the Company desirable, either gratuitously or otherwise.19. To establish, or promote or concur in establishing or promote any company for the purpose of dealing all or any of the properties, rights and liabilities of the Company.20. To sell, mortgage, exchange, grant licenses and other rights, improve, manage, develop and dispose of undertakings, properties, assets and effects of the company or any part thereof for such consideration as may be expedient and in particular for any shares, stocks, debentures or other securities of any other such company having main objects altogether or in part similar to those of the Company.21. To distribute among the members in specie or otherwise any property of the Company or any proceeds of sale or disposal of any property of the Company in the event of winding up.22. To distribute as dividend or bonus among the member or to place to reserve or otherwise to apply, as the Company may, from time to time, determine any money received by way of premium on debentures at a premium by the Company and any money received in respect of forfeited shares, money arising from the sale by the Company of forfeited shares as per the provisions of the Act, 2013.23. To employ agents or experts to investigate and examine into the conditions, prospects value, character and circumstances of any business

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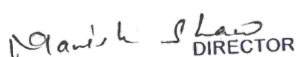
 **Navish**
DIRECTOR

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 **Gairik**
DIRECTOR

concerns and undertakings and generally of any assets properties or rights which the Company purpose to acquire.24. To create any reserve fund, sinking fund, or any other such special funds whether for depreciation, repairing, improving, and research, extending or maintaining any the properties of the Company or for any other such purpose conducive to the interest of the Company.25. To subscribe contribute, gift or money, rights or assets for any national educational, religious, charitable, scientific, public, general or usual objects or to make gifts or such other assets to any institutions, clubs, societies, associations, trusts, scientific research associations, funds, universities, college or any individual, body of individuals or bodies corporate.26. To establish and maintain or procure the establishment and maintenance of any contributory or non-contributory pension or superannuation, provident or gratuity funds for the benefit of and give or procure the giving of the gratuities, pensions, allowances, bonuses or emoluments of any persons who are or were at any time in the employment or service of the company or any company which is a subsidiary of the Company or is allied to or associated with the Company or with any such subsidiary company or who are or were at any time Directors or officers of the Company or any other company as aforesaid and the wives, widows, families and dependents of any such persons and also to establish and subsidize and subscribe to any institutions, associations, club or funds calculated to be for the benefit of or advance aforesaid and make payments to any such persons as aforesaid and to do any of the matters aforesaid, either alone or in conjunction with any such other company as aforesaid.27. To accumulate funds and to lend, invest, or otherwise employ monies belonging to or entrusted to the Company upon any shares, securities or investments upon such terms as may be thought proper and from time to time to vary such investments in such manner as the Company may think fit but shall not carry on banking business as defined by the Banking Regulation Act, 1949.28. To appoint trustees (Whether individual or corporation) to hold securities on behalf of, and to protect the interests of the Company.29. To establish, for any of the main objects of the Company, branches or firms at places in or outside India as the Company may deem expedient.30. To pay for any property or rights acquired by or for any services rendered to the Company and in particular to remunerate any person, firm or company introducing business to the company either in cash or fully or partly-paid up shares with or without preferred or deferred rights in respect of dividend or repayment of capital or otherwise or by any securities which the company has power to issue or by the grant of any rights or options or partly in one mode and partly in another and generally on such terms as the company may determine.31. To pay

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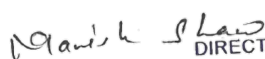
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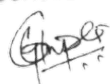
 G. S. Law
DIRECTOR

out of the funds of the company all costs, charges and expenses of and incidental to the formation and registration of the company and any company promoted by the company and also all costs, charges, duties, impositions and expenses of and incidental to the acquisition by the company of any property or assets.32. To dedicate present or otherwise dispose of either voluntarily or for value, any property of the Company deemed to be of national, public or local interest to any national trust, public body, museum, corporation or authority or any trustees for or on behalf of any of the same or of the public.33. To send out to foreign countries, its director, employees or any other person or persons for investigation possibilities of main business or trade procuring and buying any machinery or establishing trade and business connections or for promoting the interests of the company and to pay all expenses incurred in the connection.34. To compensate for loss of office of any Managing Director or Directors or other officers of the Company within the limitations prescribed under the Companies Act, 2013 or such other statute or rule having the force of law and to make payments to any person whose office of employment or duties may be determined by virtue of any transaction in which the Company is engaged.35. To agree to refer to arbitration any dispute, present or future between the Company and any other company, firm, individual or any other body and to submit the same to arbitration in India or abroad either in accordance with Indian or any foreign system of law. and any other company, firm, individual or any other body and to submit the same to arbitration in India or abroad either in accordance with Indian or any foreign system of law.36. To appoint agents, subagents, dealers, managers canvassers, sales, representatives or salesmen for transacting all or any kind of the main business of which this Company is authorised to carry on and to constitute agencies of the Company in India or in any other country.37. Subject to the provisions of the Companies Act, 2013, to receive money on deposit or loan, borrow or raise money in such manner as the Company shall think fit including but not limited to by the issue of debentures or debenture stock (perpetual otherwise) and to secure the repayment of any money borrowed, raised or owing by mortgage, charge or lien upon all or any of the property or assets of the Company (both present and future), including its uncalled capital, if any and also by a similar mortgage, charge or lien to secure and guarantee the performance by the Company or any other persons or company or any obligations undertaken by the Company or any other person or company, as the case may be.38. To conduct, organize, and manage gaming tournaments, competitions, and events based on skill-based games, and to provide services, products, and technologies related to the gaming industry,

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including but not limited to payment processing, game development, licensing, advertising, and marketing.39. To carry on any other matter necessary/incidental/ ancillary for furtherance of objects specified in clause 3(a) above

4 The liability of the member(s) is limited, and this liability is limited to the amount unpaid if any, on the shares held by them.

5 Every member of the company undertakes to contribute:

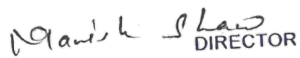
(i) to the assets of the company in the event of its being wound up while he is a member, or within one year after he ceases to be a member, for payment of the debts and liabilities of the company or of such debts and liabilities as may have been contracted before he ceases to be a member; and

(ii) to the costs, charges and expenses of winding up (and for the adjustment of the rights of the contributories among themselves), such amount as may be required, not exceeding * rupees.

(iii) The share capital of the company is rupees, divided into

100000	Equity Share	Shares of	10	Rupees each	
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Attachments

First Subscriber (s) sheet

subscriber page_gairik.pdf

Declaration

Pursuant to resolution no. dated, I, on the behalf of Board of Directors, declare that following amendments have been adopted in Memorandum of Association:

?To carry on the business of adopting advance technological tools as well as modern enterprise management mechanism, and to establish and help organizations, banks and financial institutions and their customers alike to conduct transactions electronically through secure electronic channels including cards and other devices, so as to realize the full potential of technology and services and further the development of India Payments system industry. It would include; To provide payment technology solution and services for retail /wholesale banking needs for banking institutions. To carry out the business of banking and retail terminals (Automatic Teller Machines or ATM/ Point of Sale or PoS) that includes owning and operating and/or maintenance of ATMs/PoS. To provide payment services for new generation To establish and carry on in India/abroad the business of providing software application, data management, payment and/or transaction related services to any person, entity, firm, company, bank or body corporate including developing, improving, designing, marketing, distributing or licensing software and programmed products and hardware and other infrastructure and facilities / services that aid the process of (without limitation) electronic data interchange, transaction initiation, processing, clearing or settlement services by physical or electronic means, whether by using computers, automated machines network, mobile devices or by any other modes of communication in financial and other products or services. To carry on business of internet payment gateway of all kinds as an application service provider/third party processors including bill payment and operating as Bharat Bill Payment System Operating Units (BBPOUs) under the Bharat Bill Payment System (BBPS), Immediate Payment Service (IMPS) which is an electronic funds transfer systems of India to transfer money instantly within banks across India through mobile, internet and ATM, Unified Payment Gateway License to send and receive money from smartphones without entering bank account details to various banks, financial institutions and other vertical Industries. To carry on business of Payment getaway All types Bill pay like: electric, postpaid, net, water, hospital, credit card, loan, etc Mobile/ DTH Recharge Book tickets - bus , movie, flight, train, IT services. To establish, operate, and manage an e-commerce platform or marketplace that facilitates online transactions between buyers and sellers. The company shall earn revenue by charging commission on each transaction conducted through its platform, including sales of goods, services, or other products. It will provide a platform for vendors and businesses to list, promote, and sell their products or services, and in return, the company will collect commission, fees, or other forms of remuneration for facilitating these transactions. The company may also provide value-added services related to the e-commerce platform, such as payment processing, logistics support, marketing, and advertising on a commission basis. To carry on the business of consultants, advisors, facilitators and service providers in the field of management, finance, taxation, Accounting, business strategy, legal compliance, information technology, startup advisory and other allied consultancy services to individuals, firms, companies and government bodies and other entities in India.?

To be digitally signed by

Name

MANISH SHAW

Designation

Director

DIN

0*9*8*6*

DSC

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Manish Shaw
DIRECTOR

GAIRIK CONSULTANCY PVT. LTD.


DIRECTOR